

Last Updated: 10.1.16

UberEATS Platform Order Form

This UberEATS Platform Order Form ("**Order Form**") is entered into as of the last signature date set forth below ("**Effective Date**") by and between **PORTIER, LLC** ("**us,**" "**we,**" or "**Company**") and the party listed below ("**you**" or "**your**"), sets forth the terms and conditions of your participation on our proprietary UberEATS mobile platform, and incorporates by reference the terms and conditions available at <http://t.uber.com/uberEATS-terms>, last updated October 4, 2016, and as may be updated from time to time ("**Standard Terms**," together with the Order Form, the "**Agreement**"). If there is a conflict between this Order Form and the Standard Terms, this Order Form controls. You agree to make your meals ("**Meals**") available via our UberEATS platforms selected below ("**Uber Platform**") and we will each showcase your Meals on our various social media channels, as mutually agreed (by email is sufficient). **Please check all that apply:**

☒ Marketplace – The general availability of Meals made available through Uber's order platform during your normal business hours – your customers select meals from your menu.	Service Fee - 33.00% Activation Fee - \$.00 Promotional Fee - \$ _____
☐ Originated Orders – Your use of Uber's technology dashboard to facilitate the expedited provision of Meals to your customers (this does not facilitate the selection and ordering of Meals by your customers).	Service Fee determined on a per region basis

Other Notes:

22 %

Special Terms and Conditions

1. EXPEDITED SERVICES. Neither we nor our affiliates provide expedited provisioning, delivery or logistics services. What we provide is a platform for companies like yours to connect you with Delivery Partners for expedited provision of Meals to your customers and to receive demand prediction (in the case of Marketplace), payment processing and related information services in connection with the sale of your Meals. We and the Delivery Partners operate under cover of your retail license privileges and control for the expedited provision of Meals to your customers, as your agent and not your employee. As between you and us, you, through the services provided by Delivery Partners, are responsible for the expedited provision of Meals to your customers and you maintain possession, control and care of the Meals at all times. Delivery Partners are independent contractors who license our (or one of our affiliate's) proprietary technology to provide on-demand services on an expedited basis, and they can refuse to accept any item in their sole discretion. Orders cannot weigh (in the aggregate) more than 30 pounds for bike provisioning or 50 pounds for vehicle provisioning, and you may not send any people or animals of any size, illegal, fragile or dangerous items (like weapons, explosives or flammables), alcohol, stolen goods, or any items you do not have the permission to send. Your customers must agree that we and/or Delivery Partners may contact them regarding the receipt of their Meal(s) before you may use Originated Orders to provide Meal(s) to them. Before implementing any integration or process that provides for the collection of a customer's phone number, you will ensure that each customer clearly and conspicuously agrees to being contacted in this manner. We reserve the right to collect information regarding the use of the Originated Orders tool to analyze trends and secure, operate and improve our products, platforms and services. In addition, we will use any feedback you provide to us related to your use of the Uber Platform (without acknowledgement or compensation).

2. MEALS & SAFETY STANDARDS. You will prepare all hot Meals at no less than 140°F and all cold Meals at less than 41°F ("**Safe Temperature Range**"). Meals will be available for expedited provisioning by you for a maximum of 4 hours from the time you prepared such Meal(s) ("**Marketplace Time Window**"). You will determine all quality, portion, size, ingredient or other criteria that apply to the Meals ("**Criteria**") and you are solely responsible for ensuring that your Meals meet such Criteria. In the event you fail to prepare Meals within the Safe Temperature Range or if any Meals are inconsistent with the Criteria (each, a "**Substandard Meal**"), we do not have to make these Substandard Meals available for your sale or expedited provisioning via the Uber Platform. Costs of all Substandard Meals are your responsibility, including refunds and Substandard Meal retrieval costs. We will provide you reasonable advice regarding demand prediction in connection with Marketplace, which you may use at your discretion in connection with your determination of the quantity and type of Meals you choose to make available via the Uber Platform. You maintain title to all Meal inventory until each Meal is delivered to your customer.

3. DEVICES. If we give you a tablet or other mobile device ("**Device**") to use in connection with the Uber Platform, you agree that Device(s) may only be used for the Uber Platform, and Device(s) may not be transferred, loaned, sold or otherwise provided in any manner to any third party. Device(s) will at all times remain our property, and upon expiration or termination of the Agreement, or your extended absence from the Uber Platform for longer than forty-five (45) days, you will return all Device(s) to us within ten (10) days. If you receive a wireless data plan with your Device, you will reimburse us \$15 per week (or such other amount as mutually agreed) for the costs associated with the wireless data plan of each applicable Device. You agree that we may deduct the reimbursement from the Meal Revenue.

4. GENERAL. You are responsible for determining and setting the retail price ("**Retail Price**") for each Meal to be made available via the Uber Platform, but you agree that you will not set a Retail Price higher than the amount you are charging for similar meals in-restaurant or through any comparable technology platform for food delivery or logistics services (including, but not limited to, GrubHub, Caviar, etc.). You are the "retailer" or "seller" of all Meals for local and state sales tax purposes and the responsible party for collection and remittance of applicable sales tax. The Retail Price for each Meal will not include sales tax, but you are solely responsible for determining all applicable sales tax and identifying and informing us of the appropriate sales tax amount for us to charge on your behalf for Meals sold via Marketplace. We are each responsible for our own expenses and costs. In consideration for use of the Uber Platform, we will charge you a service fee as specifically set forth above for each Meal provided via the applicable Uber Platform ("**Service Fee**"). The Service Fee is net of any taxes that you are liable for. For Marketplace, the Service Fee is the Retail Price of all Meals sold by you via the Marketplace (excluding any sales tax collected on your behalf) multiplied by the applicable Service Fee. We will remit to you the total Retail Price collected for all Meals sold by you via Marketplace plus the taxes collected on your behalf via the Marketplace less the retained Service Fee and any refunds given to your customers (such remitted amount, the "**Meal Revenue**") (remittance will be within 14 days of Meals being sold). For Originated Orders, the Service Fee is a flat amount per request plus an expedited provision fee calculated by distance, each of which may be updated by us upon written notice to you. You authorize us to charge the credit card on file with your account for Meals provided by you via Originated Orders. If you are paid for a Meal, you are responsible for the Service Fee even if a Delivery Partner is unable to complete the expedited provisioning services. All fees under this Agreement shall be paid in U.S. Dollars. If agreed, you may also be charged an Activation Fee for us to activate you on the Uber Platform and/or a Promotional Fee in consideration of the enhanced promotion you receive by selling your Meals on the Uber Platform. We will give you aggregate information regarding the number of Meals picked up by Delivery Partners and provided by you to your customers (including the date, and for Marketplace only, specific Meal and reason given for any refund (if any)). all subject to applicable privacy laws.

Portier, LLC

Accepted and Agreed:

Janis Mcneely

By: _____

By: _____

Name: Janis Mcneely

Name: Elizabeth Meyerdirk

Title: _____

Title: Authorized Signatory, Portier LLC

Date: _____

May 2, 2018

23 %

Currently paying 20%

March 11, 2026 going up 3%